

June 15, 2026
Dept. 9
Probate Tentative Rulings

10.	26PR0055	ESTATE OF THERESA MARIE BUSTAMANTE
Petition to Determine Succession to Real Property		

Petitioner, who is also the executor of decedent's estate, seeks an order determining succession of real property by petition pursuant to Probate Code section 13150, et seq. According to the decedent's will, petitioner is only entitled to a 10 percent interest in the real property. The other 90 percent interest is bequeathed to the other nine beneficiaries identified in the decedent's will. Because the petitioner is not entitled to succeed the entire interest of the real property (see, Prob. Code, § 13152, subd. (a)(4)), the court finds that the procedure of determining succession to property under Probate Code section 13150, et seq. may not be used in this case.

TENTATIVE RULING #10: THE PETITION IS DENIED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).